

SECTION 1 - CONTRACT CLAUSES

1. 52.212-4 CONTRACT TERMS AND CONDITIONS—COMMERCIAL ITEMS (DEVIATION 2017-1) (NOV 2023)

(r) *Compliance with laws unique to Government contracts.* The Contractor agrees to comply with 31 U.S.C. 1352 relating to limitations on the use of appropriated funds to influence certain Federal contracts; 18 U.S.C. 431 relating to officials not to benefit; 40 U.S.C. chapter 37, Contract Work Hours and Safety Standards; 41 U.S.C. chapter 87, Kickbacks; 10 U.S.C. 2409 relating to whistleblower protections; 49 U.S.C. 40118, Fly American; and 41 U.S.C. chapter 21 relating to procurement integrity.

2. 52.203-16 PREVENTING PERSONAL CONFLICTS OF INTEREST (JUN 2020)

3. 52.204-9 PERSONAL IDENTITY VERIFICATION OF CONTRACTOR PERSONNEL (JAN 2011)

4. 52.204-13 SYSTEM FOR AWARD MANAGEMENT MAINTENANCE (OCT 2018)

5. 52.204-18 COMMERCIAL AND GOVERNMENT ENTITY CODE MAINTENANCE (AUG 2020)

6. 52.204-21 BASIC SAFEGUARDING OF COVERED CONTRACTOR INFORMATION SYSTEMS (NOV 2021)

(a) Definitions. As used in this clause—

“Covered contractor information system” means an information system that is owned or operated by a contractor that processes, stores, or transmits Federal contract information.

“Federal contract information” means information, not intended for public release, that is provided by or generated for the Government under a contract to develop or deliver a product or service to the Government, but not including information provided by the Government to the public (such as on public websites) or simple transactional information, such as necessary to process payments.

“Information” means any communication or representation of knowledge such as facts, data, or opinions, in any medium or form, including textual, numerical, graphic, cartographic, narrative, or audiovisual (Committee on National Security Systems Instruction (CNSSI) 4009).

“Information system” means a discrete set of information resources organized for the collection, processing, maintenance, use, sharing, dissemination, or disposition of information (44 U.S.C. 3502).

“Safeguarding” means measures or controls that are prescribed to protect information systems.

(b) Safeguarding requirements and procedures.

(1) The Contractor shall apply the following basic safeguarding requirements and procedures to protect covered contractor information systems. Requirements and procedures for basic safeguarding of covered contractor information systems shall include, at a minimum, the following security controls:

(i) Limit information system access to authorized users, processes acting on behalf of authorized users, or devices (including other information systems).

(ii) Limit information system access to the types of transactions and functions that authorized users are permitted to execute.

(iii) Verify and control/limit connections to and use of external information systems.

(iv) Control information posted or processed on publicly accessible information systems.

(v) Identify information system users, processes acting on behalf of users, or devices.

(vi) Authenticate (or verify) the identities of those users, processes, or devices, as a prerequisite to allowing access to organizational information systems.

- (vii) Sanitize or destroy information system media containing Federal Contract Information before disposal or release for reuse.
- (viii) Limit physical access to organizational information systems, equipment, and the respective operating environments to authorized individuals.
- (ix) Escort visitors and monitor visitor activity; maintain audit logs of physical access; and control and manage physical access devices.
- (x) Monitor, control, and protect organizational communications (i.e., information transmitted or received by organizational information systems) at the external boundaries and key internal boundaries of the information systems.
- (xi) Implement subnetworks for publicly accessible system components that are physically or logically separated from internal networks.
- (xii) Identify, report, and correct information and information system flaws in a timely manner.
- (xiii) Provide protection from malicious code at appropriate locations within organizational information systems.
- (xiv) Update malicious code protection mechanisms when new releases are available.
- (xv) Perform periodic scans of the information system and real-time scans of files from external sources as files are downloaded, opened, or executed.

(2) Other requirements. This clause does not relieve the Contractor of any other specific safeguarding requirements specified by Federal agencies and departments relating to covered contractor information systems generally or other Federal safeguarding requirements for controlled unclassified information (CUI) as established by Executive Order 13556.

(c) Subcontracts. The Contractor shall include the substance of this clause, including this paragraph (c), in subcontracts under this contract (including subcontracts for the acquisition of commercial items, other than commercially available off-the-shelf items), in which the subcontractor may have Federal contract information residing in or transiting through its information system.

(End of Clause)

7. 52.216-32 TASK-ORDER AND DELIVERY-ORDER OMBUDSMAN--ALTERNATE I (SEP 2019)

(a) In accordance with 41 U.S.C. 4106(g), the Agency has designated the following task-order and delivery-order Ombudsman for this contract. The Ombudsman must review complaints from the Contractor concerning all task-order and delivery-order actions for this contract and ensure the Contractor is afforded a fair opportunity for consideration in the award of orders, consistent with the procedures in the contract.

Matt Kopp, Associate Director (Acting), Procurement Operations Division, 1400 Independence Avenue SW, Washington D.C. 20250, Suite 129W; p. (202)720-9448..

(b) Consulting an ombudsman does not alter or postpone the timeline for any other process (e.g., protests).

(c) Before consulting with the Ombudsman, the Contractor is encouraged to first address complaints with the Contracting Officer for resolution. When requested by the Contractor, the Ombudsman may keep the identity of the concerned party or entity confidential, unless prohibited by law or agency procedure.

(d) *Contracts used by multiple agencies.*

(1) This is a contract that is used by multiple agencies. Complaints from Contractors concerning orders placed under contracts used by multiple agencies are primarily reviewed by the task-order and delivery-order Ombudsman for the ordering activity.

(2) The ordering activity has designated the following task-order and delivery-order Ombudsman for this order:

Matt Kopp, Associate Director (Acting), Procurement Operations Division, 1400 Independence Avenue SW, Washington D.C. 20250, Suite 129W; p. (202)720-9448.

(3) Before consulting with the task-order and delivery-order Ombudsman for the ordering activity, the Contractor is encouraged to first address complaints with the ordering activity's Contracting Officer for resolution. When requested by the Contractor, the task-order and delivery-order Ombudsman for the ordering activity may keep the identity of the concerned party or entity confidential, unless prohibited by law or agency procedure.

(End of Clause)

9. 52.217-8 OPTION TO EXTEND SERVICES (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within **30** days.

(End of Clause)

10. 52.217-9 OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within **30** days; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least **30** days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed **5 years**.

(End of Clause)

11. 52.232-18 AVAILABILITY OF FUNDS (APR 1984)

Funds are not presently available for this contract. The Government's obligation under this contract is contingent upon the availability of appropriated funds from which payment for contract purposes can be made. No legal liability on the part of the Government for any payment may arise until funds are made available to the Contracting Officer for this contract and until the Contractor receives notice of such availability, to be confirmed in writing by the Contracting Officer.

12. 52.232-19 AVAILABILITY OF FUNDS FOR THE NEXT FISCAL YEAR (APR 1984)

Funds are not presently available for performance under this contract beyond **FY25**. The Government's obligation for performance of this contract beyond that date is contingent upon the availability of appropriated funds from which payment for contract purposes can be made. No legal liability on the part of the Government for any payment may arise for performance under this contract beyond **FY25**, until funds are made available to the Contracting Officer for performance and until the Contractor receives notice of availability, to be confirmed in writing by the Contracting Officer.

(End of Clause)

13. 52.237-3 CONTINUITY OF SERVICES (JAN 1991)

The Contractor recognizes that the services under this contract are vital to the Government and must be continued without interruption and that, upon contract expiration, a successor, either the Government or another contractor, may continue them. The Contractor agrees to-

(1) Furnish phase-in training; and

(2) Exercise its best efforts and cooperation to effect an orderly and efficient transition to a successor.

(b) The Contractor shall, upon the Contracting Officer's written notice, (1) furnish phase-in, phase-out services for up to 90 days after this contract expires and (2) negotiate in good faith a plan with a successor to determine the nature and extent of phase-in, phase-out services required. The plan shall specify a training program and a date for transferring responsibilities for each division of work described in the plan, and shall be subject to the Contracting Officer's approval. The Contractor shall provide sufficient experienced personnel during the phase-in, phase-out period to ensure that the services called for by this contract are maintained at the required level of proficiency.

(c) The Contractor shall allow as many personnel as practicable to remain on the job to help the successor maintain the continuity and consistency of the services required by this contract. The Contractor also shall disclose necessary personnel records and allow the successor to conduct on-site interviews with these employees. If selected employees are agreeable to the change, the Contractor shall release them at a mutually agreeable date and negotiate transfer of their earned fringe benefits to the successor.

(d) The Contractor shall be reimbursed for all reasonable phase-in, phase-out costs (i.e., costs incurred within the agreed period after contract expiration that result from phase-in, phase-out operations) and a fee (profit) not to exceed a pro rata portion of the fee (profit) under this contract.

14. 52.242-15 STOP WORK ORDER (AUG 1989)

15. 52.245-1 GOVERNMENT PROPERTY (SEP 2021)

16. 52.245-9 USE AND CHARGES (APR 2012)

17. 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es): <http://www.acquisition.gov/far>

(End of clause)

18. 52.252-6 AUTHORIZED DEVIATIONS IN CLAUSES (NOV 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any Department of Agriculture (48 CFR Chapter 4) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

19. LOCAL CLAUSE – INVOICING PROCEDURES

(a) Invoices shall be submitted electronically through the Department of Treasury's Invoice Processing Platform (IPP). The contractor shall follow instructions on how to register and submit invoices via IPP as prescribed at the IPP website <https://www.ipp.gov/>.

(b) Additional Information regarding what constitutes a proper invoice can be found by reviewing the Prompt Payment Act (31 USC Chapter 32 - PROMPT PAYMENT ACT).

(c) A complete contractor-generated invoice shall be provided electronically (either as an attachment via IPP or via email direct to the ACO and COR) along with applicable back up documentation.

(d) The Contractor shall submit any other information or documentation required by other clauses of the contract/order to support the invoice request such as reports, copies of travel vouchers, hotel and meal receipts, supporting paid invoices, receiving/acceptance reports, etc. Original receipts shall be maintained by the Contractor and made available to Government auditors upon request.

(End of Clause)

20. 52.212-5 CONTRACT TERMS AND CONDITIONS REQUIRED TO IMPLEMENT STATUTES OR EXECUTIVE ORDERS—COMMERCIAL ITEMS (JAN 2025) (DEVIATION 2017-1) (DEVIATION APR 2020) (DEVIATION JUL 2020)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial items:

- (1) [52.203-19](#), Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).
- (2) [52.204-23](#), Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab and Other Covered Entities (Jul 2018) (Section 1634 of Pub. L. 115-91).
- (3) [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment (Aug 2020) (Section 889(a)(1)(A) of Pub. L. 115-232).
- (4) [52.209-10](#), Prohibition on Contracting with Inverted Domestic Corporations (Nov 2015)
- (5) [52.233-3](#), Protest After Award (AUG 1996) ([31 U.S.C. 3553](#)).
- (6) [52.233-4](#), Applicable Law for Breach of Contract Claim (OCT 2004) (Public Laws 108-77 and 108-78 ([19 U.S.C. 3805 note](#))).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial items:

[Contracting Officer Check as appropriate.]

- ☐ (1) [52.203-6](#), Restrictions on Subcontractor Sales to the Government (*Jun 2020*), with Alternate I (*Oct 1995*) ([41 U.S.C. 4704](#) and [10 U.S.C. 2402](#)).
- ☒ (2) [52.203-13](#), Contractor Code of Business Ethics and Conduct (*Jun 2020*) ([41 U.S.C. 3509](#)))
- ☐ (3) [52.203-15](#), Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (*June 2010*) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)
- ☒ (4) [52.203-17](#), *Contractor Employee Whistleblower Rights and Requirement to Inform Employees of Whistleblower Rights* (*April 2014*) ([41 U.S.C. 4712](#) relating to whistleblower protections). (**Deviation 2017-1**)
- ☐ (5) [52.204-10](#), Reporting Executive Compensation and First-Tier Subcontract Awards (*Jun 2020*) (Pub. L. 109-282) ([31 U.S.C. 6101 note](#)).
- ☐ (6) [Reserved].
- ☐ (7) [52.204-14](#), Service Contract Reporting Requirements (*Oct 2016*) (Pub. L. 111-117, section 743 of Div. C).
- ☐ (8) [52.204-15](#), Service Contract Reporting Requirements for Indefinite-Delivery Contracts (*Oct 2016*) (Pub. L. 111-117, section 743 of Div. C).
- ☐ (9) [52.209-6](#), Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment. (*Jun 2020*) ([31 U.S.C. 6101 note](#))
- ☐ (10) [52.209-9](#), Updates of Publicly Available Information Regarding Responsibility Matters (*Oct 2018*) ([41 U.S.C. 2313](#)).
- ☐ (11) [Reserved].
- ☐ (12)(i) [52.219-3](#), Notice of HUBZone Set-Aside or Sole-Source Award (*Sep 2021*) ([15 U.S.C. 657a](#)).
- ☐ (13)(i) [52.219-4](#), Notice of Price Evaluation Preference for HUBZone Small Business Concerns (*Sep 2021*) (if the offeror elects to waive the preference, it shall so indicate in its offer) ([15 U.S.C. 657a](#)).
- ☐ (14) [Reserved]
- ☐ (15)(i) [52.219-6](#), Notice of Total Small Business Set-Aside (*Nov 2020*) ([15 U.S.C. 644](#)).
- ☐ (ii) Alternate I (*Mar 2020*).
- ☐ (16)(i) [52.219-7](#), Notice of Partial Small Business Set-Aside (*Nov 2020*) ([15 U.S.C. 644](#)).
- ☐ (ii) Alternate I (*Mar 2020*) of [52.219-7](#).
- ☐ (17) [52.219-8](#), Utilization of Small Business Concerns (*Oct 2018*) ([15 U.S.C. 637\(d\)\(2\)](#) and (3)).
- ☐ (18)(i) [52.219-9](#), Small Business Subcontracting Plan (*Sep 2021*) ([15 U.S.C. 637\(d\)\(4\)](#))
- ☐ (ii) Alternate I (*Nov 2016*) of [52.219-9](#).
- ☐ (iii) Alternate II (*Nov 2016*) of [52.219-9](#).
- ☐ (iv) Alternate III (*Jun 2020*) of [52.219-9](#).
- ☐ (v) Alternate IV (*Sep 2021*) of [52.219-9](#).
- ☐ (19) (i) [52.219-13](#), Notice of Set-Aside of Orders (*Mar 2020*) ([15 U.S.C. 644\(r\)](#)).
- ☐ (ii) Alternate I (*Mar 2020*) of [52.219-13](#).
- ☐ (20) [52.219-14](#), Limitations on Subcontracting (*Sep 2021*) ([15 U.S.C. 637s](#)).
- ☐ (21) [52.219-16](#), Liquidated Damages-Subcontracting Plan (*Sep 2021*) ([15 U.S.C. 637\(d\)\(4\)\(F\)\(i\)](#)).
- ☐ (22) [52.219-27](#), Notice of Service-Disabled Veteran-Owned Small Business Set-Aside (*Sep 2021*) ([15 U.S.C. 657f](#)).
- ☐ (23) [52.219-28](#), Post Award Small Business Program Rerepresentation (*Sep 2021*) ([15 U.S.C. 632\(a\)\(2\)](#)).
- ☐ (ii) Alternate I (*Mar 2020*) of [52.219-28](#).
- ☐ (24) [52.219-29](#), Notice of Set-Aside for, or Sole Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (*Sep 2021*) ([15 U.S.C. 637\(m\)](#)).
- ☐ (25) [52.219-30](#), Notice of Set-Aside for, or Sole Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (*Sep 2021*) ([15 U.S.C. 637\(m\)](#)).

- ☐ (26) [52.219-32](#), Orders Issued Directly Under Small Business Reserves (Mar 2020) (15 U.S.C. 644(r)).
- ☐ (27) [52.219-33](#), Nonmanufacturer Rule (Sep 2021) ([15 U.S.C. 637\(a\)\(17\)](#)).
- ☒ (28) [52.222-3](#), Convict Labor (*June* 2003) (E.O. 11755)
- ☒ (29) [52.222-19](#), Child Labor-Cooperation with Authorities and Remedies (Jan 2020) (E.O. 13126) (**Deviation Jul 2020**).
- ☒ (30) [52.222-21](#), Prohibition of Segregated Facilities (*Apr* 2015).
- ☒ (31)(i) [52.222-26](#), Equal Opportunity (*SEP* 2016) (E.O. 11246).
- ☐ (ii) Alternate I (Feb 1999) of [52.222-26](#).
- ☒ (32)(i) [52.222-35](#), Equal Opportunity for Veterans (*Jun* 2020) ([38 U.S.C. 4212](#)).
- ☐ (ii) Alternate I (*Jul* 2014) of [52.222-35](#).
- ☒ (33)(i) [52.222-36](#), Equal Opportunity for Workers with Disabilities (*Jun* 2020) ([29 U.S.C. 793](#)).
- ☐ (ii) Alternate I (*Jul* 2014) of [52.222-36](#).
- ☒ (34) [52.222-37](#), Employment Reports on Veterans (*Jun* 2020) ([38 U.S.C. 4212](#)).
- ☒ (35) [52.222-40](#) Notification of Employee Rights Under the National Labor Relations Act (*Dec* 2010) (E.O. 13496).
- ☒ (36)(i) [52.222-50](#), Combating Trafficking in Persons (*Oct* 2020) ([22 U.S.C. chapter 78](#) and E.O. 13627).
- ☐ (ii) Alternate I (*Mar* 2015) of [52.222-50](#) ([22 U.S.C. chapter 78](#) and E.O. 13627).
- ☐ (37) [52.222-54](#), Employment Eligibility Verification (*Oct* 2015). (Executive Order 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial items as prescribed in [22.1803](#).)
- ☐ (38) (i) [52.223-9](#), Estimate of Percentage of Recovered Material Content for EPA–Designated Items (*May* 2008) ([42 U.S.C. 6962\(c\)\(3\)\(A\)\(ii\)](#)). (Not applicable to the acquisition of commercially available off-the-shelf items.)
- ☐ (ii) Alternate I (*May* 2008) of [52.223-9](#) ([42 U.S.C. 6962\(i\)\(2\)\(C\)](#)). (Not applicable to the acquisition of commercially available off-the-shelf items.)
- ☐ (39) [52.223-11](#), Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (*Jun* 2016) (E.O. 13693).
- ☐ (40) [52.223-12](#), Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (*Jun* 2016) (E.O. 13693).
- ☐ (41) (i) [52.223-13](#), Acquisition of EPEAT®-Registered Imaging Equipment (*Jun* 2014) (E.O.s 13423 and 13514).
- ☐ (ii) Alternate I (*Oct* 2015) of [52.223-13](#).
- ☐ (42)(i) [52.223-14](#), Acquisition of EPEAT®-Registered Televisions (*Jun* 2014) (E.O.s 13423 and 13514).
- ☐ (ii) Alternate I (*Jun* 2014) of [52.223-14](#).
- ☐ (43) [52.223-15](#), Energy Efficiency in Energy-Consuming Products (*May* 2020) ([42 U.S.C. 8259b](#)).
- ☐ (44)(i) [52.223-16](#), Acquisition of EPEAT®-Registered Personal Computer Products (*Oct* 2015) (E.O.s 13423 and 13514).
- ☐ (ii) Alternate I (*Jun* 2014) of [52.223-16](#).
- ☒ (45) [52.223-18](#), Encouraging Contractor Policies to Ban Text Messaging While Driving (*Jun* 2020) (E.O. 13513).
- ☐ (46) [52.223-20](#), Aerosols (*Jun* 2016) (E.O. 13693).
- ☐ (47) [52.223-21](#), Foams (*Jun* 2016) (E.O. 13693).
- ☐ (48)(i) [52.224-3](#) Privacy Training (*Jan* 2017) (5 U.S.C. 552 a).
- ☐ (ii) Alternate I (*Jan* 2017) of [52.224-3](#).
- ☐ (49) [52.225-1](#), Buy American-Supplies (*Jan* 2021) ([41 U.S.C. chapter 83](#)).

☐ (50)(i) [52.225-3](#), Buy American-Free Trade Agreements-Israeli Trade Act (*Jan 2021*) (***Deviation Jul 2020***) ([19 U.S.C. 3301](#) note, [19 U.S.C. 2112](#) note [19 U.S.C. 3805](#) note, [19 U.S.C. 4001](#) note, **19 U.S.C. chapter 29 (sections 4501-4732)**, Pub. L. 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43.

☐ (ii) Alternate II (*Jan 2021*) of [52.225-3](#).

☐ (iii) Alternate III (*Jan 2021*) of [52.225-3](#)

☐ (51) [52.225-5](#), Trade Agreements (***Deviation Jul 2020***) ([19 U.S.C. 2501](#), *et seq.*, [19 U.S.C. 3301](#) note).

☐ (52) [52.225-13](#), Restrictions on Certain Foreign Purchases (*Feb 2021*) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).

☐ (53) [52.225-26](#), Contractors Performing Private Security Functions Outside the United States (*Oct 2016*) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; [10 U.S.C. 2302 Note](#)).

☐ (54) [52.226-4](#), Notice of Disaster or Emergency Area Set-Aside (*Nov 2007*) ([42 U.S.C. 5150](#)).

☐ (55) [52.226-5](#), Restrictions on Subcontracting Outside Disaster or Emergency Area (*Nov 2007*) ([42 U.S.C. 5150](#)).

☐ (56) [52.229-12](#), Tax on Certain Foreign Procurements (*Feb 2021*).

☐ (57) [52.232-29](#), Terms for Financing of Purchases of Commercial Items (*Feb 2002*) ([41 U.S.C. 4505](#), [10 U.S.C. 2307\(f\)](#)).

☒ (58) [52.232-30](#), Installment Payments for Commercial Items (*Jan 2017*) ([41 U.S.C. 4505](#), [10 U.S.C. 2307\(f\)](#)).

☒ (59) [52.232-33](#), Payment by Electronic Funds Transfer-System for Award Management (*Oct 2018*) ([31 U.S.C. 3332](#)).

☐ (60) [52.232-34](#), Payment by Electronic Funds Transfer-Other than System for Award Management (*Jul 2013*) ([31 U.S.C. 3332](#)).

☐ (61) [52.232-36](#), Payment by Third Party (*May 2014*) ([31 U.S.C. 3332](#)).

☒ (62) [52.232-40](#), Providing Accelerated Payments to Small Business Subcontractors (*Dec 2013*) (***Deviation Apr 2020***) ([31 U.S.C. 3903](#) and [10 U.S.C. 2307](#))

☒ (63) [52.239-1](#), Privacy or Security Safeguards (*Aug 1996*) ([5 U.S.C. 552a](#)).

☐ (64) [52.242-5](#), Payments to Small Business Subcontractors (*Jan 2017*) ([15 U.S.C. 637\(d\)\(13\)](#)).

☐ (65)(i) [52.247-64](#), Preference for Privately Owned U.S.-Flag Commercial Vessels (*Feb 2006*) ([46 U.S.C. 55305](#)) and [10 U.S.C. 2631](#)).

☐ (ii) Alternate I (*Apr 2003*) of [52.247-64](#).

☐ (iii) Alternate II (*Feb 2006*) of [52.247-64](#).

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial items:

[Contracting Officer check as appropriate.]

☐ (1) [52.222-41](#), Service Contract Labor Standards (*Aug 2018*) ([41 U.S.C. chapter 67](#)).

☐ (2) [52.222-42](#), Statement of Equivalent Rates for Federal Hires (*May 2014*) ([29 U.S.C. 206](#) and [41 U.S.C. chapter 67](#)).

☐ (3) [52.222-43](#), Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (*Aug 2018*) ([29 U.S.C. 206](#) and [41 U.S.C. chapter 67](#)).

☐ (4) [52.222-44](#), Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (*May 2014*) ([29 U.S.C. 206](#) and [41 U.S.C. chapter 67](#)).

☐ (5) [52.222-51](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (*May 2014*) ([41 U.S.C. chapter 67](#)).

☐ (6) [52.222-53](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (*May 2014*) ([41 U.S.C. chapter 67](#)).

☐ (7) [52.222-55](#), Minimum Wages Under Executive Order 13658 (*Nov 2020*).

☐ (8) [52.222-62](#), Paid Sick Leave Under Executive Order 13706 (*Jan 2017*) (E.O. 13706).

☐ (9) [52.226-6](#), Promoting Excess Food Donation to Nonprofit Organizations (*Jun 2020*) ([42 U.S.C. 1792](#)).

(d) Comptroller General Examination of Record. The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR [2.101](#), on the date of award of this contract, and does not contain the clause [52.215-2](#), Audit and Records-Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR [subpart 4.7](#), Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e) (1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1) in a subcontract for commercial items. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause-

(i) [52.203-13](#), Contractor Code of Business Ethics and Conduct (*Jun 2020*) ([41 U.S.C. 3509](#)).

(ii) [52.203-19](#), Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (*Jan 2017*) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iii) [52.204-23](#), Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab and Other Covered Entities (*Jul 2018*) (Section 1634 of Pub. L. 115-91).

(iv) [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (*Aug 2020*) (Section 889(a)(1)(A) of Pub. L. 115-232).

(v) [52.219-8](#), Utilization of Small Business Concerns (*Oct 2018*) ([15 U.S.C.637\(d\)\(2\)](#) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds \$700,000 (\$1.5 million for construction of any public facility), the subcontractor must include [52.219-8](#) in lower tier subcontracts that offer subcontracting opportunities.

(vi) [52.222-21](#), Prohibition of Segregated Facilities (*Apr 2015*).

- (vii) [52.222-26](#), Equal Opportunity (*Sept* 2015) (E.O.11246).
- (viii) [52.222-35](#), Equal Opportunity for Veterans (*Jun* 2020) ([38 U.S.C.4212](#)).
- (ix) [52.222-36](#), Equal Opportunity for Workers with Disabilities (*Jun* 2020) ([29 U.S.C.793](#)).
- (x) [52.222-37](#), Employment Reports on Veterans (*Jun* 2020) ([38 U.S.C.4212](#))
- (xi) [52.222-40](#), Notification of Employee Rights Under the National Labor Relations Act (*Dec* 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause [52.222-40](#).
- (xii) [52.222-41](#), Service Contract Labor Standards (*Aug* 2018) ([41 U.S.C. chapter 67](#)).
- (xiii) (A) [52.222-50](#), Combating Trafficking in Persons (*Oct* 2020) ([22 U.S.C. chapter 78](#) and E.O 13627).
- (B) Alternate I (*Mar* 2015) of [52.222-50](#)([22 U.S.C. chapter 78](#) and [E.O 13627](#)).
- (xiv) [52.222-51](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (*May* 2014) ([41 U.S.C. chapter 67](#)).
- (xv) [52.222-53](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (*May* 2014) ([41 U.S.C. chapter 67](#)).
- (xvi) [52.222-54](#), Employment Eligibility Verification (*Oct* 2015) (E.O. 12989).
- (xvii) [52.222-55](#), Minimum Wages Under Executive Order 13658 (*Nov* 2020).
- (xviii) [52.222-62](#), Paid Sick Leave Under Executive Order 13706 (*Jan* 2017) (E.O. 13706).
- (xix) (A) [52.224-3](#), Privacy Training (*Jan* 2017) ([5 U.S.C. 552a](#)).
- (B) Alternate I (*Jan* 2017) of [52.224-3](#).
- (xx) [52.225-26](#), Contractors Performing Private Security Functions Outside the United States (*Oct* 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; [10 U.S.C. 2302 Note](#)).
- (xxi) [52.226-6](#), Promoting Excess Food Donation to Nonprofit Organizations (*Jun* 2020) ([42 U.S.C. 1792](#)). Flow down required in accordance with paragraph (e) of FAR clause [52.226-6](#).
- (xxii) [52.247-64](#), Preference for Privately Owned U.S.-Flag Commercial Vessels (*Feb* 2006) ([46 U.S.C. 55305](#)) and [10 U.S.C.2631](#)). Flow down required in accordance with paragraph (d) of FAR clause [52.247-64](#).

(2) While not required, the Contractor may include in its subcontracts for commercial items a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)